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Legal Interpretation, Objectivity, and Morality

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Much of traditional analytical jurisprudence concerns the nature of law and the relation between law and morality. One traditional debate about the nature of law concerns its objectivity or determinacy. A conception of law can be understood to be objective insofar as it represents the law in actual or hypothetical controversies as determining a uniquely correct outcome; it can be understood as skeptical insofar as it represents the law as indeterminate. Extreme skepticism would claim that the law is rarely, if ever, determinate, whereas complete objectivity would claim that the law is never indeterminate. By contrast, a more moderate skepticism maintains that the law is indeterminate when it is especially controversial what the law requires. Here, as elsewhere, extreme views may be difficult to accept. Few endorse complete objectivity; some strands in Legal Realism and in Critical Legal Studies appear to endorse extreme skepticism about the law; but moderate skepticism is probably the view more congenial to common sense.

Another traditional jurisprudential debate concerns the relation between law and morality. This debate is often cast between Legal Positivism and Natural Law. Whereas Natural Law theory asserts that there is some essential connection between law and morality, Legal Positivism denies this. In particular, Natural Law theory typically asserts that valid laws must have some significant moral content, without which they are not genuine legal norms. By contrast, Legal Positivism typically understands the law as a system of social norms or rules having an appropriate history or pedigree that distinguishes them from moral norms or rules; on this view, genuine laws might be significantly immoral.¹ Though Natural Law appears to be the more inspirational tradition, Legal Positivism may seem the more plausible.

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Debates about the determinacy of the law and the relation between law and morality are, I believe, best seen and assessed in the context of debates about the nature of legal interpretation. For debates about the law's objectivity can be seen as debates about the extent to which legal interpretation is determinate. Debates between Legal Positivism and Natural Law can be seen as debates about the role of moral reasoning in legal interpretation. I begin with a critical discussion of some familiar forms of skepticism about the law and legal interpretation. In the wake of these criticisms of skepticism, I sketch a philosophical conception of legal interpretation, whose significance I then explore for familiar debates in constitutional jurisprudence about the nature of constitutional interpretation and judicial review. I conclude by examining the implications of this conception of interpretation for debates about the determinacy of the law and the relation between law and morality. This interpretive conception underwrites skepticism about the existence of significant indeterminacy in the law and finds an important element of truth in both legal positivism and natural law theory.²

I. The Model of Rules

A common view of the law and legal reasoning receives theoretical articulation in traditional positivist theories of law of the sort defended by John Austin and H. L. A. Hart.³ On this view, the law is a system of social norms or rules having an appropriate pedigree that distinguishes them from various other norms or rules, including norms of etiquette and norms of morality. According to Austin, laws are commands of the sovereign. A command is a request backed by the threat of sanctions for noncompliance, and a sovereign is one (or more) who is habitually obeyed by the bulk of society but who is not in the habit of obedience to anyone else. According to Hart, a legal system is composed of primary rules and secondary rules of recognition, adjudication, and change. Primary rules regulate the conduct of citizens by way of requirements, permissions, and prohibitions. Secondary rules of recognition, adjudication, and change address concerns about a system of primary rules. A rule of recognition resolves uncertainty about which norms are part of the system of primary rules by specifying the criteria that mark a norm as part of the system of primary rules; rules of adjudication specify how disputes about the interpretation and application of the primary rules are to be resolved; and rules of change specify how the primary rules may be modified to accommodate changing circumstances, beliefs, preferences, and values. A rule of recognition is constituted by the norms that regulate, in the appropriate way, the behavior of the system's officials. Primary rules are valid laws by virtue of having the appropriate pedigree specified in the system's rule of recognition.

The model of rules claims that there are preexisting legal rules that judges can and, at least in decent legal systems, should apply. Presumably, these rules

clearly require, forbid, and permit certain conduct. The rules clearly cover cases involving such conduct. These are *easy* cases in which the law is uncontroversial and determinate. But there are also *hard* cases involving conduct that the rules do not cover clearly, about whose resolution there is controversy. Hart's own view is that hard cases are legally indeterminate and that courts can resolve such cases only by exercising *discretion* – that is, a quasi-legislative capacity.⁴ On this view, judges – at least in easy cases – can and do both *discover* and *apply* pre-existing law.

II. Legal Realism and Rule-Skepticism

However, this common view about the law and legal interpretation appears to be challenged by some strands in Legal Realism – especially the rule-skepticism found in the writings of Oliver Wendell Holmes and John Chipman Gray, among others.⁵ Much of what Legal Realism was concerned with was psychological and sociological analysis of the judicial process – for instance, the way in which judicial decisions are correlated with the class background of the judiciary and the social and economic sources of litigation and consequences of judicial decisions. Insofar as this was the main concern of the realists, their claims may have little direct bearing on the traditional concerns of analytical jurisprudence. But many of the realists also made general, apparently philosophical claims about the nature of law and the responsibilities of judges, and they were critical of theories of law, like Hart's and Austin's, that treat the law as a body of rules. It is this aspect of Legal Realism on which I shall focus here.⁶

The realists criticized the sort of *mechanical jurisprudence* that they associated with thinking of law as a body of rules.⁷ The mechanical jurist apparently thinks that all cases are easy cases and that legal reasoning takes a simple syllogistic form.

1. All Fs are forbidden (legal rule).
2. A's action x is F (statement of fact).
3. Hence, x is forbidden (judicial decision).

Some Legal Realists are skeptical about whether there are exceptionless rules that can serve as the major premises in such syllogisms. They are *rule-skeptics*. Instead of identifying the law with legal rules, they think we should identify it in some way with the decisions of courts. Holmes suggests that we adopt the bad man's point of view on the law.

If you want to know the law and nothing else, you must look at it as a bad man, who cares only for the material consequences which such knowledge enables him to predict, not as a good one, who finds his reasons for conduct, whether inside the law or outside of it, in the vaguer sanctions of conscience.⁸

If we take the bad man's point of view, Holmes thinks, we will identify law with predictions of what courts will do.

Take the fundamental question, "What constitutes the law?" You will find some text writers telling you that it is something different from what is decided by the courts of Massachusetts or England, that it is a system of reason, that it is a deduction from principles of ethics or admitted axioms or what not, which may or may not coincide with the decisions. But if we take the view of our friend the bad man we shall find that he does not care two straws for the axioms or deductions, but that he does want to know what the Massachusetts or English courts are likely to do in fact. I am much of his mind. The prophecies of what the courts will do in fact, and nothing more pretentious, are what I mean by the law.⁹

But if we are really interested only in the "bottom line" from the bad man's point of view, then we should apparently identify law with what courts will in fact do, rather than with (fallible) predictions of what they will do. This is Gray's view. He distinguishes between law and sources for law. Whereas statutes, constitutional provisions, and precedents are sources of law, actual laws are just whatever the court in fact decides. In *The Nature and Sources of Law* he writes

[A]fter all, it is only words that the legislature utters; it is for the courts to say what those words mean; that is, it is for them to interpret legislative acts. . . . And this is the reason why legislative acts, statutes, are to be dealt with as sources of Law, and not as part of the Law itself. . . . It has sometimes been said that the Law is composed of two parts – legislative law and judge-made law – but, in truth, all the Law is judge-made law.¹⁰

Understood literally, this means that there is never any law prior to a court's decision and that, as a result, judges always *create*, rather than apply, the law. Though there are no legal constraints on how courts decide cases, cases can be decided in better and worse ways. One important strand in Legal Realism urges judges to base their decisions on a proper understanding of the social and economic consequences of their decisions.¹¹ Though courts can make no legal mistakes, they can make pragmatic and moral mistakes.

Ironically, rule-skepticism represents a kind of philosophical antirealism about the law.¹² Realism about a domain typically claims that there are facts or truths of a certain kind that are independent of our beliefs about them and our verification procedures. As such, realism implies *fallibility*. By contrast, anti-realist views deny or at least restrict fallibility. For example, verificationist views eliminate the possible gap between truth and our evidence by reducing the facts or truths in question to our evidence or verification procedures. One form of verificationism about the external world is phenomenalism, which holds that the truth of a claim that there is a table in the next room is nothing more than the truth of various claims about what one would experience were one to enter the room. Behaviorism is a verificationist view about mental states, according to which ascription of mental states is nothing more than the

ascription of behavioral tendencies. And a standard verificationist position in philosophy of science is operationalism, which Percy Bridgman describes as the "attitude that the meanings of one's terms are to be found by an analysis of the operations which one performs in applying the term in concrete situations or in verifying the truth of statements or in finding answers to questions."¹³ For instance, the temperature of an object, on this view, is just whatever reading would result if the object were connected to an appropriate thermometer (fact = verification procedure).

The model of rules is (in this sense) realistic; it treats judicial decisions (and the predictions of lawyers about the decisions of judges) as reliable, but not infallible guides to what the law is prior to and independently of those decisions. By contrast, the Legal Realists — or, at least, the rule-skeptics among them — were verificationists; this strand of Legal Realism removes the commonsense gap between the law and judicial reports about the law and so makes judicial decisions infallible.

Why should we embrace these counterintuitive claims? Gray and other Legal Realists defend verificationist claims about the law by appeal to the fact that in legal systems such as our own, it is the courts that have the authoritative say on what the laws mean.¹⁴ There are two things worth distinguishing here. One issue concerns *finality*. Courts (ultimately the highest court) have (has) the final say in a particular case about what legal rights the parties to that case have. Another issue concerns *precedential value*. Other things being equal, a court's ruling in a relevantly similar case has the status of law; subsequent interpretations of the law must take that decision into account with other legal materials.

Gray certainly appeals to judicial finality as his principal argument for verificationism about the law. This is clear in the larger passage, which I have already quoted in part.

[A]fter all, it is only words that the legislature utters; it is for the courts to say what those words mean; that is, it is for them to interpret legislative acts; undoubtedly there are limits upon their powers of interpretation, but these limits are almost . . . undefined. . . . And this is the reason why legislative acts, statutes, are to be dealt with as sources of Law, and not as part of the Law itself. . . . It has sometimes been said that the Law is composed of two parts — legislative law and judge-made law — but, in truth, all the Law is judge-made law. The shape in which a statute is imposed on the community as a guide for conduct is that statute as interpreted by the courts. The courts put life into the dead words of the statute. To quote again from Bishop Hoadly . . . "Nay, whoever hath an *absolute authority to interpret* any written or spoken laws, it is *he* who is truly the *Law-giver* to all intents and purposes, and not the person who first wrote or spoke them."¹⁵

It is important that there be some final arbiter for disputes at law, for parties to those disputes, and important that there be some consistency in the decisions governing similar cases, for those beyond the parties to a particular suit. But

neither the finality nor precedential value of judicial decisions secures their infallibility, as the verificationist requires.

Even if there is no further appeal after the decision of a superior court, that doesn't mean that the court could not have made a legal mistake. Hart's analogy with the finality of umpires within the game of baseball is helpful here.¹⁶ Because umpires have the final say on the interpretation and application of the rules of baseball, we might be tempted to say that the rules of baseball are what the umpire says they are. But to infer that there are no rules of baseball prior to and independently of the decisions of umpires — that the umpire is supposed to apply and against which his decision can be assessed — is to mistake the finality of an umpire's decisions for his infallibility. Indeed, it's hard to explain how the players regulate their behavior or the umpire is to make decisions if it is not normally as a good faith effort to follow or enforce the rules of the game.

There might seem to be some sense to the verificationist claim that final arbiters are infallible, where their decisions, however bad, have the force of precedent. For then there seems to be a clear sense in which even bad decisions are law. But this does not show that courts are infallible. Precedent implies that subsequent interpretations of the law must take that decision into account with other legal materials, including those rules that the earlier decision misinterpreted. We can agree that a bad decision can add to the law while insisting that that decision was not supported by the law that existed at the time of the decision. The forward-looking claim on behalf of bad interpretation and the backward-looking claim against it are fully compatible. So precedent does not imply infallibility. In fact, if the significance of precedent is that subsequent interpretations of the law must take that decision into account with other legal materials, then precedents are among the preexisting legal rules that any future decision must take into account.¹⁷ But then precedent counts against legal verificationism, not in favor of it.

III. Indeterminacy in Hard Cases and Judicial Discretion

Legal Realism, understood as a verificationist view about the law, claims that there is no settled law on a matter prior to its judicial resolution. As such, it implies rampant indeterminacy in the law. As we have seen, such a view is wildly implausible. We have no reason to give up the commonsense view of law as a system of rules in favor of this sort of Legal Realism. However, even if there is no plausibility to the verificationist's claims about rampant indeterminacy, might a more restricted kind of indeterminacy be plausible? Verificationism is implausible as a general theory of law if only because there are legal rules that judges can apply in easy cases. These cases are legally determinate and the court's decision is legally correct just insofar as it corresponds to what the rules, properly interpreted, imply. But not all cases are easy cases. Some

cases are hard cases in which, for a variety of reasons, it is controversial what the law requires or whether the law applies to the case at hand. It is significant that the realists were primarily appellate court judges and law professors who studied cases on appeal. As such, most of the cases that they were concerned with were hard cases, presenting controversial issues of law. Even if easy cases are legally determinate, it is not unreasonable to suppose that in hard cases there is no determinate answer about what the law is, with the result that if judges are to decide such cases they must do so on extralegal grounds. This suggests that we might best view Legal Realism's indeterminacy thesis not as a general claim about the law, but as a claim about hard cases.¹⁸ So restricted, Legal Realism is much more plausible.

Indeed, Hart himself clearly accepts this more restricted realist claim. On this view, easy cases, to which the legal rules clearly apply, are legally determinate; insofar as it is the judge's duty to interpret and apply the law, it is her duty to decide the case as the law determines. But hard cases, in which it is controversial or unclear whether the rules apply, are, as a result, legally indeterminate. Hart thinks that such indeterminacy is an artifact of the "open texture" of language.

All rules involve recognizing or classifying particular cases as instances of general terms, and in the case of everything which we are prepared to call a rule it is possible to distinguish clear central cases, where it certainly applies and others where there are reasons both for asserting and denying that it applies. Nothing can eliminate this duality of a core of certainty and a penumbra of doubt when we are engaged in bringing particular situations under general rules. This imparts to all rules a fringe of vagueness or "open texture."¹⁹

Hard or controversial cases fall within the open texture of legal rules, precisely because they are cases in which reasons can be given on either side. But when a case falls within the open texture of language, Hart believes that it is legally indeterminate.²⁰ Judges cannot decide such cases by applying the law but only by exercising a quasi-legislative capacity — what Hart calls *judicial discretion*.²¹

Hart illustrates these claims about open texture, indeterminacy, and judicial discretion with an example involving a municipal ordinance that prohibits the introduction of vehicles into the park. He claims that the word "vehicle" has in this context a core of settled meaning that includes ordinary citizens' cars and motorcycles; as a result, the rule prohibits these vehicles from being in the park. But, Hart claims, bicycles and skateboards fall within the open texture of the term "vehicle" and so there is no fact of the matter as to whether the rule prohibits these vehicles. A judge deciding cases on the periphery must exercise discretion.

Hart makes clear that this sort of judicial legislation need not and should not be arbitrary; such judicial choice should reflect characteristic judicial virtues of

impartiality, neutrality, and principled decision making.²² Though there may in this way be better or worse resolutions of legally indeterminate cases, such resolution must *ex hypothesi* be based on extralegal considerations. We can reconstruct Hart's reasoning in something like the following way.

1. The law consists of legal rules formulated in general terms.
2. All general terms are "open textured": though they contain a core of settled meaning, they also have a periphery where their meaning is not determinate.
3. Controversial or hard cases, about which reasonable people with legal training disagree, fall within the open texture of legal terms within existing legal rules.
4. Hence, hard cases are legally indeterminate.
5. Hence, courts cannot decide hard cases on legal grounds; they could decide them only on extralegal (e.g., moral and political) grounds.
6. Hence, in hard cases courts must exercise judicial discretion and make, rather than apply, law.

On this view, judicial discretion does involve a quasi-legislative activity. By this sort of interstitial legislation, the courts gradually help fill in gaps in the law.²³

We might raise various questions about this argument. For instance, we might worry about the move from indeterminacy to judicial discretion in the inference from (5) to (6). Of course, if courts are to decide legally indeterminate cases, they must exercise discretion. But should they decide such cases? A democratic worry is that judicial discretion involves judge-made law and, as such, violates the separation of powers doctrine that requires lawmakers to be politically accountable as, in principle, legislators are and many judges are not. Alternatively, we might worry that judicial discretion is unfair insofar as it would hold people legally liable for conduct whose legal status at the time was, by hypothesis, indeterminate.

Interesting and important as these worries are, I want to focus instead on the adequacy of Hart's argument for indeterminacy.²⁴ To assess Hart's argument for indeterminacy, it will be useful to examine briefly Dworkin's early criticism of the model of rules.

IV. Rules and Principles

In "The Model of Rules" Dworkin rejects Hart's argument about the need for judicial discretion in hard cases.²⁵ Whereas Hart defends moderate skepticism about the determinacy of the law, Dworkin defends its near complete objectivity. Dworkin argues that in virtually every case, including the hardest of hard cases, one litigant is entitled — as a matter of preexisting legal right — to a decision in his favor. This is a very strong claim about the determinacy of the

law. Dworkin's disagreement with Hart rests on his rejection of the model of rules. According to Dworkin, the law is richer than a set of rules; in addition to explicitly enacted rules, the law also consists of principles that do not depend for their legal status upon any kind of prior official, social recognition or enactment. Dworkin uses two cases to illustrate this claim: *Riggs v. Palmer*²⁶ and *Henningsen v. Bloomfield Motors, Inc.*²⁷

In *Riggs*, the court declared, contrary to the "plain meaning" of the relevant probate statutes, that an heir could not inherit under the provisions of an otherwise valid will if he or she murdered the testator. Though conceding that the statutes did not bar inheritance under such conditions, the court held that it is a fundamental principle of the common law that "no one shall be permitted to profit from his own fraud, or to take advantage of his own wrong, or to found any claim upon his own iniquity, or to acquire property by his own crime."²⁸

In *Henningsen* there was a contract to buy an automobile, signed by both parties, that expressly limited the manufacturer's liability to "making good defective parts." The contract was properly executed, and there seemed no other established legal rule that could expand the manufacturer's liability. Henningsen's wife was injured as the result of defects in the manufacture of his car. Henningsen sued to collect compensatory damages, and the court found for Henningsen despite the express limitations in the contract. The court cited various general principles of law. Despite principles requiring the enforcement of freely made contracts, the court based its decision on the following principles: (1) manufacturers who produce potentially dangerous products such as automobiles are under special obligations that require courts to ensure that the terms of contracts involving such manufacturers are fair to both public and consumer interests; (2) courts will not be used as instruments of injustice; and (3) courts will not enforce contracts in which one party takes unfair advantage of the other's economic necessities.

It is an interesting question how exactly Dworkin's principles differ from Hart's rules.²⁹ But even if Dworkin can explain this satisfactorily, it remains unclear how supplementing the model of rules with principles can block Hart's argument for the indeterminacy of hard cases. If Hart's semantic claim in premise (2) of his argument is true, then we should expect to find legal indeterminacies even if the law consists of principles as well as rules. Legal principles, as well as legal rules, are expressed in language that contains general terms that have open texture. And it would be absurd to suppose that whenever the meaning of a legal rule is unclear, there is a legal principle whose meaning is clear. For instance, in *Henningsen* the court's decision that Henningsen's contract was too unjust to enforce could not, I think, be construed as settled by the core meaning of the term "injustice." But then we cannot resist something like Hart's indeterminacy thesis simply by supplementing the model of rules with principles.³⁰

V. The Semantics of Indeterminacy

The claim that general terms are open textured in Hart's sense fits with a familiar view about meaning and reference that receives articulation in a semantic tradition that includes John Locke, Gottlob Frege, Bertrand Russell, C. I. Lewis, and Rudolph Carnap.³¹ Simplifying somewhat, we might understand this tradition as making two claims about meaning and reference:

1. **A descriptive theory of meaning:** the meaning of a word or phrase is the set of (identifying) descriptions or properties that speakers associate with it.
2. **Meaning determines reference:** the extension of the word or phrase is all and only those things that satisfy the descriptions speakers associate with the term(s).

On this view, the meaning of a term is the set of criteria that speakers have in mind when they apply the word, and the extension of that term is the set of all and only those things that satisfy these criteria. So, for example, the meaning of the term "bachelor" is given by the description "man who has never been married" that people associate with the term, and the reference or extension of the term is all and only those things that satisfy this description, that is, all and only men who have never been married.

Hart appears to accept a version of the traditional semantic theory that identifies meanings of words with the properties or descriptions conventionally associated with them. The meaning of these legal terms is the set of criteria that are conventionally associated with them, and the law is a function of what satisfies those criteria. This explains his view that legal terms have determinate meaning just so long as speakers by and large agree in the properties or descriptions that they associate with particular legal terms. Though cases are either easy or hard, there are two kinds of easy case and so three kinds of case altogether. For a given word, there are

- a. descriptions that almost everyone associates with the word,
- b. descriptions that almost no one associates with the word, and
- c. descriptions that some do associate with the word, and some don't.

Something that satisfies an (a)-description is part of the extension of the term; something that satisfies only (b)-descriptions is not part of the extension of the term; and about something that satisfies a (c)-description it is indeterminate whether it is part of the extension of the word. So a legal rule using this word determinately applies in the first case; it determinately does not apply in the second; and it is indeterminate whether it applies in the third. The first two kinds of case are easy cases, whereas the third is a hard case. In hard (and only

hard) cases the law is indeterminate. So, on this view, judges in hard cases are not bound by determinate legal standards; if they are to decide such cases, they must do so on extralegal grounds.

However, a semantic theory that combines a descriptive view of meaning with the traditional view according to which meaning determines reference is problematic as an account of names and natural kind terms for a number of reasons. First, it does not allow us to use names and general terms to refer to individuals or properties about whom or which we are ignorant or have false beliefs. Intuitively, speakers can use names and general terms to refer to things about which they associate erroneous descriptions. We might wrongly associate the description "teacher of Plato" with the name "Aristotle." To explain how it is that we might say falsely of Aristotle that he was Plato's teacher, the name "Aristotle" must not refer via the satisfaction of an associated description (which might include "student of Plato"). The problem here for the descriptive theory is that it does not distinguish properly between what speakers' words refer to and what speakers believe.

This problem manifests itself in another way; the descriptive theory has difficulty representing disagreement. Genuine disagreement requires univocal meaning or reference but incompatible beliefs about the nature of the things one's words refer to. This is just to say that genuine disagreement requires the distinction between a difference in subject matter and a difference in belief. Because the traditional descriptive theory cannot make this distinction adequately, it cannot represent genuine disagreement. Consider synchronic disagreement. At any one stage in an intellectual inquiry there may well be a number of descriptions conventionally associated with the use of a general term. Suppose most speakers associate features XYZ with general term "G." Nonetheless it ought to be possible for a heretical inquirer to express disagreement with the prevailing view. A speaker ought to be able to say of the very thing that most speakers use "G" to refer to that it is not XYZ but rather ABC. But this must be ruled out by the traditional descriptive theory, for on this view the meaning and reference of "G" is given by the description—XYZ—that is conventionally associated with "G." If so, the heretic's claim is analytically false. But certainly not all heretical claims are false—much less analytically false—as the progressive nature of various inquiries shows us. This leads naturally to the case of diachronic disagreement. At any one stage in an intellectual inquiry there may well be a number of descriptions conventionally associated with the use of a general term. But as inquiry progresses, the descriptions associated with these terms are likely to change. In the normal case, we would like to say that there is diachronic disagreement and progress, but both judgments presuppose continuity of meaning and reference. But there will be no such continuity according to the traditional descriptive theory. The two linguistic communities associate different descriptions with their terms and, hence, mean and refer to different things by their terms. They no more

disagree than do interlocutors one of whom says "The bank [= financial institution] is a good place for your money" and the other of whom says "The bank [= side of the river] is not a good place for my money." On this view, there can only be diachronic intellectual *change*; there can be no genuine intellectual disagreement, continuity, or progress.³²

There are, of course, legal illustrations of these issues. People appear to disagree about the extension of legal phrases, such as "due care," "cruel and unusual punishment," and "equal protection of the laws." And, at least in some areas, we think legal interpretation has been progressive. For instance, most people think that the Court's decision in *Brown v. Board of Education*³³ declaring racially segregated public education unconstitutional is both inconsistent with and superior to the Court's earlier decision in *Plessy v. Ferguson*³⁴ upholding racially segregated public transportation under the separate-but-equal doctrine. But disagreement, continuity, and progress presuppose univocal meaning or reference, for instance, as regards the phrase "equal protection of the laws." This is what the traditional descriptive theory cannot deliver. It must represent heretical claims about the extension of legal terms as analytically false and must represent changed conceptions of equal protection as changes of subject matter.

These problems arise from the descriptive theory because it allows reference to be determined by senses. A natural alternative to this kind of mediated reference is a theory of *direct* reference that does not make reference depend upon speakers' associated descriptions or beliefs. One account of direct reference that grew out of suggestions made by Keith Donnellan and was developed by Saul Kripke and Hilary Putnam is the *causal* theory of reference.³⁵ According to the causal theory, names and natural kind terms refer to things in the world via complex causal histories. On this view, language users introduce terms (e.g., names and general terms) to pick out interesting features of their environment. In the idealized case, a group of speakers introduces a term in this way; what their term refers to is that bit of the environment (e.g., that object, property, or relation) that explains what they found interesting and intended to pick out. Subsequent speakers borrow this term with the intention of referring to the same thing; their use of the term inherits reference to the same features of the environment via a historical-causal chain extending from their use of the term, through the original "dubbing ceremony," to the relevant aspects of the environment. Thus, for example, the term "water" was introduced to pick out the colorless, odorless stuff found in lakes, rivers, etcetera that is suitable for drinking, bathing, supporting life, and so forth. This liquid is actually made of H₂O, and it is this chemical composition that allows it to serve these various functional roles. According to the causal theory, the reference of the term "water" is determined by this causal-historical chain; past, subsequent, and present use of "water" refers to H₂O, even as speakers' beliefs about water have been very different. Because people have not always realized that the

chemical composition of water is H₂O or even that water has a chemical composition, the causal theory allows us to explain how speakers can use terms meaningfully while being quite ignorant, perhaps mistaken, about their extension and how speakers can speak about the same thing while disagreeing significantly in their beliefs about this subject matter. On this view, determining what the term "water" refers to involves reliance on scientific theorizing about the chemical structure that explains the liquid's properties. We appeal to, or defer to, experts — not because their beliefs determine what our terms refer to — but because they provide us with the best available evidence about the real nature of the referents of our terms.

The theory of direct reference is just one view about meaning and reference. But I think that any plausible view must observe two constraints that traditional semantic assumptions do not and that the theory of direct reference does.

1. It must distinguish between the meaning and/or reference of terms and the beliefs of speakers about the extension of their terms.
2. It must recognize that ascertaining the extension of general terms typically involves theoretical considerations of various kinds that may outstrip knowledge possessed by ordinary speakers.

Consider how these semantic claims would affect the interpretation of an environmental regulation imposing strict standards of due care in the handling of toxic substances enacted in, say, 1945. Relying perhaps on (then) current scientific evidence, the legislators in 1945 had beliefs about what substances are toxic, and this determined what substances the handling of which they expected the statute to regulate. We now have different and better theories about toxins. Should we place any weight on the descriptions that framers of the law associated with toxins or the scope they thought the statute has? Should we continue to impose strict liability only on the handling of those substances that the enacting legislators expected to be regulated? We might if we accepted traditional semantic assumptions. For then, failure to treat the enacting legislators' beliefs about toxins as authoritative for the meaning or reference of the word "toxin" in the regulation would apparently be a failure to interpret the statute in light of its original meaning. But appealing to original legislative beliefs in this way means failing to impose strict standards of due care on the handling of substances that are in fact toxic. Indeed, we might now have good reason to believe that substances that were not regarded as toxic in 1945 are actually *more* toxic than the substances that the legislators regarded as toxic. Only if we reject the traditional semantic assumptions and distinguish between the extension of a term and speakers' beliefs about the extension of that term can we get the right interpretative results here. The 1945 statute imposes new legal regulations on the handling of substances that are, in fact, toxic, and not on those substances that legislators then believed to be toxic. A given legal

community can do no better than rely on the best available evidence in trying to determine the reference of "toxic substance." The conventional beliefs then or now about the extension of "toxin" and the scope of the statute are at most starting points in our own inquiry into the meaning of the statute, and where we have reason to believe that these beliefs are mistaken, they exercise no interpretive constraint at all.

Insofar as legal interpretation is concerned with the meaning and extension of the language in which legal provisions are expressed, it must make and defend substantive commitments about the nature and extension of the kinds and categories that legal terms refer to, and cannot simply appeal to conventional beliefs about the extension of those terms.³⁶

VI. Interpretation and Intention

It is tempting to think that semantics exhausts interpretation. Isn't interpreting a phrase or text just the attempt to determine its meaning or reference? If so, then interpretation just is the determination of semantic content. This is the position of so-called textualists, such as Justice Scalia.³⁷ Scalia contends that the rule of law within a constitutional democracy requires that interpretation be constrained by the original meaning of legal texts, as applied to present circumstances, rather than by appeal to extratextual sources such as the intentions of the framers or past or present moral and political ideals. Only a textualist approach to interpretation, he thinks, will ensure the rule of law, rather than a rule by individuals.

But it is doubtful that semantics exhausts interpretation; a thoroughgoing textualism leads to absurd interpretive results. Consider Hart's municipal ordinance forbidding vehicles in the park. Does the ordinance, properly interpreted, forbid police cars from entering the park in pursuit of dangerous criminals? Presumably not. But on almost any semantic view "vehicles" clearly includes police cars within its extension. If semantics exhausted interpretation, the correct interpretation of this statute would clearly imply that police cars are forbidden in the park. Because this seems to be the wrong interpretive result (certainly, it is not clearly the right interpretive result), this casts doubt on a pure textualism.

Or consider the First Amendment's guarantee that "Congress shall make no law respecting an establishment of religion . . . or abridging the freedom of speech, or of the press, or the right of people to peaceably assemble." Here, too, at least part of the *meaning* of the amendment is clear; it applies to *all* speech, and it extends an *absolute* protection. But this has not been the traditional *interpretation* of the First Amendment; the Court distinguishes between protected and unprotected speech and subjects restrictions on different kinds of speech to different standards of review.³⁸

If the semantic content of a legal provision does not exhaust its interpreta-

tion, what else does interpretation involve? The primary objects of legal interpretation – statutes, constitutional provisions, and precedents – like most objects of interpretation, are human artifacts, the products of purposeful activity. In interpreting the products of purposeful activity, it is common to think that we must appeal to the purposes that prompted and guided the activity whose product we are trying to understand. This suggests that legal interpretation should involve appeal to the reasons, purposes, and intentions of those who enacted the law.³⁹ So, for example, appeal to underlying purposes having to do with public safety might explain why various kinds of vehicles are excluded from the park and also why, at least under certain circumstances, law enforcement vehicles are not to be excluded. Similarly, if we could identify the purposes underlying the First Amendment, perhaps we could begin to distinguish, as the Court does, between central First Amendment liberties and “low value” speech.

The limits of textualism are nicely illustrated in a case that Scalia himself discusses. Scalia’s brand of textualism insists that “a text . . . should be construed reasonably, to contain all that it fairly means.”⁴⁰ He illustrates this brand of textualism by his dissent in *Smith v. United States*.⁴¹

The statute at issue provided for an increased jail term if, “during and in relation to . . . [a] drug trafficking crime,” the defendant “uses . . . a firearm.” The defendant in this case had sought to purchase a quantity of cocaine; and what he had offered to give in exchange for the cocaine was an unloaded firearm, which he showed to the drug-seller. The Court held, I regret to say, that the defendant was subject to the increased penalty, because he had “used a firearm during and in relation to a drug trafficking crime.” I dissented.⁴²

Scalia dissented on the ground that the proper interpretation of the statute would understand the reference to the use of firearms to be restricted to their use as weapons and not to include their use as barter. But this sensible interpretive claim cannot be defended by appeal to the meaning of the language of the enacted provision, independently of information about the general aims or goals the legislators were pursuing in enacting the provision. But this is just the sort of extratextual information that Scalia’s textualism eschews.

A textualist literalism leads to interpretive absurdities. In rejecting textualism, we seek an account of interpretation that represents legal provisions in a favorable light. The way to do this is to understand interpretation as appealing not just to the meaning of the language of legal provisions but to reasonable conceptions of the principles and aims that underlie or rationalize those provisions.

VII. Abstract Intent

The relevance of the intentions of framers is a familiar view about both statutory and constitutional interpretation. But this claim establishes very little until

we determine the *level of abstraction* at which we should characterize the purposes or intentions of the framers of a law. The purposes of the framers can be characterized in two quite different ways. The interpreter can look only to the specific activities that the framers sought to regulate – *specific intent* – or she can look to the abstract values and principles that the framers had in mind – *abstract intent* – and then rely on her own views about the extension of these values and principles. Indeed, one’s specific intent is the product of one’s abstract intent and collateral beliefs that determine one’s beliefs about the extension of the values and principles that form one’s abstract intent. So, for example, the framers of our 1945 environmental regulation had the abstract intent to regulate the manufacture and disposal of toxic substances and they had (or relied on) certain beliefs about which substances are toxic, which together led them to have specific intentions about which substances should be regulated. Or consider the intentions underlying the Eighth Amendment’s prohibition of cruel and unusual punishment. The framers presumably had the abstract intent of prohibiting morally outrageous or disproportionate punishment, but their collateral moral beliefs about justifiable punishment and their previous experiences led them to expect the Eighth Amendment’s prohibition on cruel and unusual punishment to prohibit some punishments and not others. For instance, they might have had the specific intent to prohibit the rack, the guillotine, and drawing-and-quartering; and it might not have been part of their specific intent to prohibit, as a matter of principle, capital punishment or hanging, in particular.

Typically both kinds of intentions or purposes exist. But then insofar as there is interpretive need to appeal to the intentions of framers, should we be constrained by their specific intentions or by their abstract intentions and our own collateral beliefs about the extension of these abstract values and principles? These two conceptions of the intentions of the framers assign quite different roles to judges and other legal interpreters. Ascertaining specific intent appears to be primarily a historical-cum-psychological task, whereas articulating abstract intent appears to be a more philosophical and value-laden task. Which intention should guide interpretation?

Meaning itself is often a good guide as to how abstract the intention is that we’re looking for. If the environmental regulation demands the regulation of toxic substances, then this is evidence for the priority of abstract intent. Though evidence then available may have led its framers to expect the regulation to cover only certain substances, they chose the more general language. Because they could have chosen more specific language, regulating all and only those substances they then believed toxic, the fact that they didn’t suggests that their dominant intent was to regulate those substances that are in fact toxic, and not just those they then believed to be toxic. Similarly, the abstract language of the Eighth Amendment seems to be evidence for the priority of abstract intent. Though the framers’ moral beliefs about punishment may have led them to expect a prohibition on cruel and unusual punishment to prohibit only certain

specific forms of torture and capital punishment, the fact that they chose the general language of "cruel and unusual punishment" is evidence that their dominant intention was to prohibit punishments that are in fact morally outrageous or disproportionate, not just these specific forms of torture and capital punishment. For it was certainly within their power to adopt a much more restricted amendment, explicitly prohibiting only these specific forms of torture and capital punishment. So when the language of the legal provision is abstract, this tends to show that the dominant intention was abstract.

But if we are to avoid the perils of pure textualism, language cannot be our only guide. One appropriate kind of evidence is counterfactual. Consider a different, but related, interpretive problem for a moment. Agents often possess many motives from which they might have acted or which their actions might be taken to express. In interpreting and assessing an agent's behavior in such circumstances, we often want to know what the agent's dominant motive was. The usual way we go about determining this is by trying to answer various counterfactual questions about what the agent would have done if certain of her beliefs or desires had been different in certain ways. If I want to know whether it was Bonny's conception of her own interest or her concern for Ben and Sam that made her keep her promise to them, I would try to decide, among other things, if she would have kept a similar promise to them had it required somewhat greater sacrifice on her part. It is not always easy to answer such counterfactual questions, but plausible answers to such questions seem to be a good guide to dominant motive.

We might rely on a similar sort of counterfactual test to determine which purpose or intention underlying a legal standard is dominant. Would the framers still have enacted the legal provision in question, in its current form, even if their beliefs about the extension of their abstract intent had been different?

Consider our environmental regulation. Suppose that we share an aim of subjecting the manufacture and disposal of toxic substances to stringent standards of care. We may disagree in our collateral beliefs about which substances are toxic; you may recognize both *x* and *y* as toxic substances, whereas I recognize only *x* as toxic. As a result, you may have the specific intention that the manufacture and disposal of both *x* and *y* be regulated, whereas my specific intention is that the manufacture and disposal of *x* but not *y* be regulated. If I were to come to believe that *y* as well as *x* is toxic, would I

- a. come to believe that *y*, as well as *x*, ought to be handled with due care or
- b. cease to want to regulate the manufacture and disposal of toxic substances?

Here the answer seems clear: (a). My dominant aim is to regulate the manufacture and disposal of substances that are in fact toxic, not just those that I now believe to be toxic.

Or suppose that I have an abstract aim of prohibiting cruel and unusual punishment, that I do think drawing-and-quartering is cruel and unusual punishment, but that I do not think hanging is cruel and unusual punishment (for capital crimes). My specific intentions are to prohibit drawing-and-quartering but not to prohibit hanging. If I were to come to think that hanging is morally outrageous, would I

- a. come to believe that the death penalty is cruel and unusual punishment and ought to be prohibited or
- b. cease to want to prohibit cruel and unusual punishment?

It may be difficult for me to imagine some of my collateral beliefs mistaken in important ways. But if I really imagine what it would be like to change my collateral beliefs in this way, the answer, again, seems clear: (a). My dominant aim is to prohibit those forms of punishment that are in fact cruel and unusual, not just those that I now believe to be cruel and unusual.

Nor should this be surprising. Because specific conceptions result from a prior, though perhaps implicit, commitment to certain abstract values together with collateral beliefs about the extension of those values, the appropriate change in one's collateral beliefs would typically lead to a change in one's specific conceptions and intent.

These considerations tend to vindicate the interpretive priority of abstract intent. They also explain a similar point Dworkin makes. At one point, Dworkin draws a contrast between *concepts* and *conceptions*, which is related to our contrast between abstract and specific intent.⁴³ Dworkin distinguishes between fundamental moral or political concepts or values recognized in the Bill of Rights — such as freedom of association, due process, and equality — and conceptions of those concepts that articulate a theory about those values and that assign an extension to those values. On Dworkin's view, constitutional interpretation should seek to identify the best conception of the framers' concepts, rather than simply reproduce the framers' conceptions. The priority of abstract intent explains why.

Abstract intent also avoids or reduces certain familiar worries about the interpretive appeal to the intentions of the framers. What sort of historical evidence should be used to determine the specific intentions of framers who are no longer alive? How reliable is this information? Can framers be said to have intentions about situations that had not occurred to them or which they could not have envisaged? Whose intentions should we be concerned with: the leading intellectual proponents of the provision, all those who voted, only those who voted for it, or the citizens these people were supposed to represent? So, for example, in the case of constitutional provisions, we might wonder whether we are to appeal to the intentions of the leading Federalists (e.g., Madison, Hamilton, and Jay), all members of the Constitutional Convention, those of the

participants in state ratification, or those of the people whom these participants were supposed to represent. Moreover, where there are competing or different intentions, how do we aggregate conflicting intentions?

These worries seem especially acute for specific intent, because specific intentions will vary among individuals to the extent that they differ in their collateral beliefs about the proper conception of the values expressed by a provision's abstract intent. However, insofar as parties to a disagreement differ only in their conceptions of shared abstract concepts, we should expect much less disagreement at the level of abstract intent. Moreover, the evidential problem will also be reduced when we shift attention from specific to abstract intent. For the language of these constitutional provisions and background knowledge about a society's general aims and principles will often be a fairly good guide as to the kind of principle or value underlying the provision.

VIII. Corporate Intentions

But if we continue to think of abstract intent as a part of an individual's psychology, some worries remain. For we may still wonder whose abstract intentions we should consider. Also, though there will be less disagreement in concept than in conception, it's not clear why there can't still be disagreement in concept, and then we need to know how to aggregate conflicting abstract intentions. Moreover, on this view, abstract intentions are still psychological states of individuals, and any claim that a particular principle was among the abstract intentions of the framers must be assessed as a historical-cum-psychological claim about various individuals. But when interpreters posit a principle or value as a purpose of the framers of a provision, they often make no attempt to document any such historical-psychological claim. Often they appeal to a principle that provides a plausible rationale for the provision and that may well have been held by the framers but need not have.⁴⁴

We can accommodate this aspect of interpretive practice by recognizing that we are interpreting the acts of social and political bodies who are corporate agents. We are interpreting acts of legislatures at various levels, the Constitutional Convention, and various courts. Though they are composed of individuals, the acts are attributed to those individuals acting together. Insofar as we are interested in the intentions of the framers, we should be interested in the purposes or intentions of these corporate bodies — *corporate intentions* — rather than the individual persons who compose them. If so, we might understand appeal to underlying purpose as making no essential psychological or intentional claims — about individuals. Instead, we should understand interpretive ascriptions of underlying purpose as attempts to find *intellectual* or *explanatory structure* in the law. The purposes underlying a legal provision are the reasons that explain the adoption of the law. It should not be surprising if these reasons are often reflected in the language of the law or if individual framers of

the law often possessed and understood these reasons, but neither of these things is necessary.

We might try to understand the explanation of corporate behavior on the model of the explanation of individual behavior. We explain an individual's intentional action by ascribing to her reasons for action. In so doing, we may be said to "rationalize" her behavior. These reasons consist of beliefs and aims whose existence and causal efficacy would explain why the person acted as she did.⁴⁵ Though a person's reports about her own motives and aims would be important evidence for us in deciding what purposes rationalize her behavior, they need not be authoritative. People often fail to understand fully their own aims, for instance, because they are moved by subconscious desires or because they are self-deceived about their true motives. In such cases, the reasons a person might adduce as underlying her behavior would not provide a good explanatory fit with her actions. If we consider any particular action, there are likely to be many eligible explanations. For instance, if a person keeps a promise that it was in her interest to keep, her reasons for action might be either prudential or moral. We decide between alternative explanations by seeing which better explains *patterns* in her behavior. We would like to know whether she would have kept her promise even if she had believed that it was disadvantageous to do so. If she would have, it seems her motive was moral; if not, it seems her motive was prudential. But often our best evidence for answering this counterfactual question is other behavior of hers. Has she kept other promises when she believed that it was imprudent or at least when the advantages of fidelity were uncertain? We might also look at associated forms of behavior. Is she generally faithful to her friends even when doing so is inconvenient or otherwise difficult? Does she generally maintain what she believes to be her obligations even when this is costly? A person's other behavior will be relevant to an intentional explanation of a particular action of hers to the extent that we think she has a fairly continuous, stable character. In a similar way, the reasons we ascribe to a particular person on a particular occasion will be constrained by our general knowledge of human nature and psychology. It is on this sort of holistic basis that we ascribe reasons and aims to a person. Sometimes, our background psychological knowledge and the person's behavioral history is insufficiently rich to allow us to decide between alternative explanations of her behavior. In some such cases, it seems reasonable to think that there is a fact of the matter about what her motive was and that the indeterminacy is just in our evidence. In other cases, however, it seems reasonable to think that her motives are more coarse-grained and do not distinguish between different features of her act, as the alternative motives we might ascribe to her do; here, there is a kind of psychological indeterminacy. If we were allocating praise and blame to her on the basis of our explanation of her behavior, it would be reasonable, in cases involving either sort of indeterminacy, to construe her motivation in the most favorable light available.

A structurally similar story about the explanation of corporate agents is plausible. We should look to the aims, values, and principles underlying particular legal provisions in interpreting those provisions in order to explain the adoption of those provisions. Of course, the semantic content of the provision is some evidence about what goals and values the framers collectively were trying to realize, and the provision may contain a preamble that explicitly sets out these goals and values. Moreover, we would do well to consider the beliefs, where they are available, of various individuals who were influential in the drafting and enactment of the provision about the aims of the provision. But none of this evidence need be decisive, for it may not succeed in rationalizing the adoption of the provision in light of what else we know about the corporate agent's behavior and the larger social and institutional background against which it acts. Often alternative rationales are eligible. If a particular regulation tends to promote two values *F* and *G*, it may be unclear whether the underlying purpose of the provision is to promote *F*, to promote *G*, to promote *F* and *G*, or to promote *F* or *G*. To decide among these alternative rationales, we would need to answer various counterfactual questions. For instance, it would help to know if the provision would have been adopted (in its actual form), all else being equal, had it promoted *F* but not *G* and had it promoted *G* but not *F*. If the provision would only have been adopted if both *F* and *G* were promoted, this is reason to think that the rationale of the provision is to promote both. If the provision would have been adopted if either *F* or *G* alone was promoted, this is reason to think that the rationale of the provision is to promote *F* or *G*. If the provision would not have been adopted had *G* alone been promoted, this is reason to think that the rationale of the provision is to promote *F*. And if the provision would not have been adopted had *F* alone been promoted, this is reason to think that the rationale of the provision is *G*. But often our best evidence for answering such counterfactual questions is other provisions that have been adopted. What effect do closely related provisions have on *F* and *G*? Are both promoted? If so, are they promoted individually or together? Is one not promoted? Do any provisions prevent or retard one of the values and, if so, which value? And we might ascribe rationales by finding wider patterns in the law, among provisions from different areas of the law (e.g., criminal and tort law). In a similar way, our ascription of rationale will also be constrained by our background knowledge about human psychology and social theory. The content and effect of other provisions and background social theory are relevant to the ascription of a rationale to a particular provision to the extent that we think our legal system operates in fairly continuous, principled ways. It is in this sort of holistic way that we ascribe values and principles to our legal system as the rationale for particular provisions. It is possible that in some cases these resources will be insufficiently rich to decide between alternative ascriptions of underlying purpose. Sometimes this will appear to be indeterminacy in our evidence; sometimes it will appear to be indeterminacy in the

law. Because legal judgments determine people's entitlements and responsibilities, it would be reasonable, in cases involving either sort of indeterminacy, to construe the underlying purpose of a provision in the most favorable light available.

It is, I think, this sort of sympathetic or constructive interpretation of the explanatory structure of a legal system's provisions that best fits the interpretive practice surrounding the rhetoric of the intentions of the framers and allows us to recover a defensible interpretive constraint from that rhetoric.

IX. Principled Interpretation

On this view, the interpreter begins with the rules and principles expressed in various legal materials, including constitutional provisions, statutes, and judicial decisions. Interpreting these rules and principles requires ascertaining the meaning and extension of the words in which these rules and principles are expressed. This semantic constraint requires the interpreter to distinguish between the meaning of general terms in the law and conventional beliefs about their extension; she must make and defend commitments about the nature of the properties these terms pick out, commitments that may outstrip conventional wisdom about the extension of these terms. If the legal rules refer to scientific kinds (as our environmental regulation refers to toxins), then the semantic constraint requires the interpreter to make substantive judgments about the nature of the kinds (toxins); she should make use of the best available theories about the kinds in question (toxins), which may well outstrip conventional wisdom about the extension of the kinds (conventional wisdom about which substances are toxic). Similarly, when legal provisions are formulated using general terms that are normative, the semantic constraint requires interpreters to make and defend substantive normative judgments about the extension of the normative terms. Making normative commitments will be a feature of much legal interpretation, but especially of the interpretation of "open-ended" provisions in the Bill of Rights and the Fourteenth Amendment formulated in terms of "freedom of speech," "unreasonable search and seizure," "due process," "just compensation," "cruel and unusual punishment," and "equal protection of the laws." Here, the semantic constraint requires interpreters to make and defend substantive moral commitments about freedom of expression, the rights of the accused, fair procedures, compensatory justice, penal justice, and equal treatment.

To avoid the perils of textualist literalism, the semantic aspects of interpretation must be supplemented by construction of abstract corporate intentions of the provisions and decisions under interpretation. This requires identifying the values and principles that rationalize the actions of legal institutions and bodies in the sense of both fitting or explaining these legal events and in the sense of justifying them. One identifies principles by looking for patterns in existing

provisions and decisions and tests them by seeing how well they account for existing provisions and decisions and how they would bear on the decision of related controversies. Principled interpretation will require recognizing legal mistakes. It is unlikely that all existing decisions track all the relevant similarities among cases; a principled conception of interpretation must treat those that do not fit the fundamental patterns as mistakes. But a principled interpreter might also decide a case according to principle *A*, rather than principle *B*, even though *A* requires recognizing more mistakes than *B*, if *A* projects much more plausibly to future controversies than *B*. This will be especially plausible where the mistakes that *A* recognizes are decisions themselves interpreting some prior provision or decision and *A* represents the meaning or purpose of the original provision or decision more faithfully. Mistakes should not be posited lightly, but this is the sort of reasoning responsible interpretation sometimes requires, as in the Court's decision in *Brown* to overturn *Plessy*'s separate-but-equal doctrine.

This conception of principled interpretation resembles Dworkin's account of "constructive" legal interpretation, which decides cases in terms of principles that represent existing legal materials in their best light.⁴⁶ It represents legal interpretation, especially the interpretation of legal provisions and decisions employing normative concepts, as a philosophical enterprise in which interpreters must identify substantive conceptions of these concepts that both explain the role of those concepts in the workings of the legal system and articulate those concepts in attractive ways.

X. Judicial Review and Constitutional Interpretation

We can see the importance of these interpretive claims by exploring their role in familiar and important debates in constitutional theory about the legitimacy of the Supreme Court's exercise of judicial review. The popular and political debate surfaces at just about every hearing over a Supreme Court nomination, though perhaps especially at more controversial (less centrist) nominations. It surfaced perhaps most clearly during the hearings over the nomination of (then) Judge Robert Bork. The popular and political debate is often framed as one between *judicial restraint* or *strict constructionism* and *judicial activism*. There has been a parallel debate in the scholarly literature about the nature of constitutional interpretation and the scope of legitimate judicial review. Judicial review is the judicial power to declare democratic legislation void for being unconstitutional. At one point not so long ago, this debate was framed as one between *interpretive* and *noninterpretive* review. We might say that the Court exercises interpretive review insofar as it invalidates legislation based on its interpretation of the Constitution and that it exercises noninterpretive re-

view insofar as it invalidates legislation as embodying unsound policy or political morality.⁴⁷

The debates about judicial activism and restraint and about interpretive and noninterpretive review typically concern a variety of landmark decisions over the last several decades — especially by the Warren and Burger Courts — concerning personal and civil rights. Much of the debate concerns various aspects of so-called substantive due process. Since the New Deal, the Court has rejected the doctrine of economic substantive due process, associated with *Lochner v. New York*,⁴⁸ that recognized the liberty of contract as a fundamental right deserving special protection. But whereas *Lochner* and economic substantive due process ended during the New Deal, substantive due process continued, insofar as the Court subsequently construed due process as protecting various fundamental personal and political liberties. Part of substantive due process concerns the "selective incorporation" of key provisions of the Bill of Rights (the first nine amendments) — such as the right to freedom of speech and religion, the right against unreasonable search and seizure, the right to counsel, the right against self-incrimination, the right to compensation for property appropriated by the state, and the right against cruel and unusual punishment — into the due process clause of the Fourteenth Amendment so as to make these provisions, applicable against the federal government, applicable against state and local governments as well.⁴⁹ Modern substantive due process also includes the recognition of nonenumerated substantive rights, such as the right to privacy.⁵⁰ Other controversial aspects of due process include the recognition of rights of the accused in criminal proceedings.⁵¹ The debates also concern equal protection decisions that invalidated legislative districting plans that denied equal representation⁵² and that mandated school desegregation.⁵³ Many claim that in these cases, among others, the Court has gone well beyond constitutional interpretation and has, instead, been legislating social policy and creating legal rights. In the popular debate, this part of the Court's record is represented as activist; in the scholarly debate, it is characterized as noninterpretive review. The critics reject activism and noninterpretive review, whereas many friends of the Court embrace activism and noninterpretive review.⁵⁴

XI. Judicial Review in a Constitutional Democracy

Most parties to these debates assume that judicial review has an important role in a constitutional democracy; they are not skeptics about judicial review. Nonetheless, it is important to be clear about the rationale for judicial review. Within a constitutional democracy, such as our own, the constitution not only (a) creates a federal government, specifying its powers and dividing them among the branches of government, and (b) allocates power, at least by implication, between federal and local government, but also (c) recognizes certain

rights of individuals against both local and federal government. Judicial review is the power of the judiciary to determine if governmental action conforms to these constitutional powers and constraints.

Though judicial review is not *explicitly* provided for in the Constitution, the structure of the Constitution appears to imply the legitimacy of judicial review. Article 3 of the Constitution defines the legitimate sphere of judicial power. Section 2 extends judicial power to cases "arising under this Constitution." That is, litigants claiming that a constitutional right has been violated present cases that fall within the scope of the federal judicial power. Article 6, section 2 says "This Constitution and the laws . . . which shall be made in pursuance thereof . . . shall be the supreme law of the land; and the judges in every state shall be bound thereby." This obligation to apply the law is presumably, by article 3, equally binding on federal courts.

The rationale at work here is an argument from *institutional role* that is also advanced by Alexander Hamilton in *Federalist* #78⁵⁵ and by Chief Justice Marshall in *Marbury v. Madison*.⁵⁶

1. It is the institutional role of the judiciary to interpret and apply the law.
2. The Constitution is the supreme law of our legal system.
3. Hence, the Court must interpret and apply the Constitution.
4. Hence, if the Court determines that legislation conflicts with the Constitution, it must declare that legislation unconstitutional.

According to this rationale, it is the institutional role of the judiciary as interpreter of the law that grounds the power of judicial review.⁵⁷

This rationale for judicial review fits nicely with a common understanding of the separation of governmental powers. Here, the separation of powers doctrine involves a separation of governmental *functions*. In our system this separation of function insists that the legislature is supposed to make law, that the judiciary is supposed to interpret and apply the law, and that the executive is supposed to enforce the law as interpreted by the judiciary. Though this account no doubt oversimplifies a more complex matter, something roughly like this division of labor has an important democratic rationale. It is thought that the legislature, rather than the judiciary, should make law, because we want our lawmakers to be democratically accountable, as, in principle, legislators are and (federal and some state) judges are not.⁵⁸ The institutional rationale for judicial review respects this division of labor. It instructs the judiciary to interpret the Constitution and measure legislation against this interpretation (interpretive review); it does not instruct the judiciary to decide if legislation is wise (noninterpretive review).⁵⁹ Indeed, whereas the separation of functions condemns noninterpretive review, it requires interpretive judicial review. It is the function of the courts to apply the law, and it is the function of the legislature to make law — subject to certain constitutional limits. Because the

Constitution is a law, it is the job of the courts to decide if the legislature has heeded its constitutional limits.⁶⁰

The debates that interest us focus on the exercise of judicial review to protect individual rights. Whereas we want our laws to be enacted by a majority (in some cases, a supermajority) of our representatives and we want our representatives to be politically accountable, we have not accepted purely majoritarian politics. Groups can combine their electoral power to form coalitions that advance their own interests legislatively by systematically discriminating against an electoral minority within the community. This phenomenon is often referred to as *tyranny of the majority*. It presumably counts as something especially objectionable when the minority interests being ignored or harmed are especially important. Here the worry is that simple majority rule does not respect minority rights. The obvious response to this problem is to recognize institutional *constraints* on what the community can do, even with democratic support. In specifying majority rule as an appropriate law-making procedure, the constitution may also place constraints on the possible content of legislation by insisting that certain decisions cannot be taken and placing them outside the scope of majority rule. The resulting form of democracy is not pure majority rule, but rather a *constitutionally limited democracy*.

This account of the role of judicial review within a constitutional democracy explains what is wrong with the common perception that there is a tension between judicial review and democracy. In his book *Democracy and Distrust*, John Ely expresses the apparent tension this way: "Thus the central function, and it is at the same time the central problem, of judicial review: a body that is not elected or otherwise politically responsible in any significant way is telling the people's elected representatives that they cannot govern as they'd like."⁶¹ This democratic worry misunderstands the role of judicial review within a constitutionally limited democracy. The division of labor between legislative and judicial branches of government has, as we've seen, a democratic rationale: we want our lawmakers to be politically accountable, as legislators are and as federal judges are not. However, ours is a constitutional democracy, rather than a system of pure majoritarianism; the constitutional recognition of individual rights takes certain issues off the democratic agenda. In its institutional capacity as interpreter and applier of law, it is the judiciary's job to measure democratic legislation against its interpretation of constitutional rights to see if legislation satisfies constitutional constraints.

XII. Interpretive Assumptions

One might expect a debate over the record of judicial review to concern the details of the disputed cases and of the Court's reasoning in these cases. However, the debate relies on fairly general features of these cases and assumptions about the nature of constitutional interpretation. The general fea-